

CHAPTER 52.

An Act to amend the law with respect to the regulation of Advertisements.

[31st July 1925.].

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extended
powers of
making
byelaws.
7 Edw. 7.
c. 27.

1.—(1) The powers of a local authority under section two of the Advertisements Regulation Act, 1907 (in this Act referred to as the principal Act), shall include powers to make byelaws for regulating, restricting or preventing within their district or any part thereof the exhibition of advertisements so as to disfigure or injuriously affect—

- (a) the view of rural scenery from a highway or railway, or from any public place or water; or
- (b) the amenities of any village within the district of a rural district council; or
- (c) the amenities of any historic or public building or monument or of any place frequented by the public solely or chiefly on account of its beauty or historic interest.

(2) In the principal Act and in this Act the expression “advertisements” includes any structure or apparatus erected or intended only for the display of advertisements.

(3) This section shall not apply to the exhibition of advertisements on or upon any railway station, yard, platform or railway approach belonging to a railway company, or except within the district of a rural district council upon any dock, quay, pier, landing stage, wharf, lock or toll station belonging to any harbour, dock or canal undertaking.

Delegation
of powers
by county
councils to
district
councils.

2.—(1) Without prejudice to any other powers of delegation, a county council may arrange with any urban district council which is not a local authority within the meaning of the principal Act for the delegation to that council of any of the powers of the county council

under the principal Act, and may arrange with any rural district council for the delegation to that council of the power of enforcing any byelaws made under the principal Act by the county council, and, where any such arrangement is made, the county council may delegate its powers accordingly.

(2) A county council may at any time cancel any arrangement made by them under this section but without prejudice to anything previously done thereunder, and where any such arrangement is cancelled any byelaws made thereunder by the urban district council shall, until varied or revoked by the county council, have effect as if they had been made by the county council.

(3) Any arrangement made under this section delegating to an urban district council the power to make byelaws shall provide for the notification to the county council of any byelaws made under the arrangement.

(4) Any expenses incurred by a district council in pursuance of an arrangement made under this section shall be repaid to that council by the county council by which the arrangement was made, and any expenses so repaid by a county council shall be defrayed by the county council as part of their expenses in carrying the principal Act into effect:

Provided that—

(a) if any such expenses incurred by a district council exceed any limit which may have been imposed by the arrangement made by the county council, the amount of the excess shall not be repayable to the district council unless it is so resolved by the county council; and

(b) any expenses properly incurred by a district council in pursuance of the arrangement shall, so far as they are not repaid by the county council, be defrayed as part of the general expenses of the district council; and

(c) for the purposes of section four of the principal Act a district council shall not by reason of any arrangement made under this section be deemed to be a local authority under that Act.

(5) This section shall not apply to Scotland.

Short title,
construction
and extent.

3.—(1) This Act may be cited as the Advertisements Regulation Act, 1925, and shall be read as one with the principal Act, and the principal Act and this Act may be cited together as the Advertisements Regulation Acts, 1907 and 1925. •

(2) References in this Act to the principal Act shall be construed as references to that Act as amended by this Act.

(3) In the application of this Act to Scotland references to the district of a rural district council shall be construed as references to a county exclusive of any burgh situated therein.

(4) This Act shall not apply to Northern Ireland.

CHAPTER 53.

An Act to amend section seven of the Mental Deficiency Act, 1913, for the purpose of enabling a defective to be removed from an institution for the purpose of being placed under guardianship. [31st July 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of 3 & 4
Geo. 5. c. 28,
s. 7 :
“Variation
of orders.”

1. Section seven of the Mental Deficiency Act, 1913, shall have effect as though the following subsection were inserted after subsection (2) of that section :—

“ 2.—(a) Where an order has been made that a defective be sent to an institution, the judicial authority which made the order, or any other judicial authority, or, where the original order was not made by a judicial authority, any judicial authority may, on application being made for the purpose by the Board or by the local authority, and on being satisfied that the case is or has become one suitable for guardianship, order that the defective be placed under guardianship.”

Short title.

2. This Act may be cited as the Mental Deficiency (Amendment) Act, 1925.